

25VECV03723 25VECV03723

County: los-angeles

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Case Number: 25VECV03723 Hearing Date: September 28, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ZACHARY VANN, by and through his Conservator MARTIN VANN,

Plaintiff,

vs.

SUNSHINE RESIDENTIAL HOME, LLC; OYEWOLE JOSEPH JOSE; TOLUWALOPE JOSE; ZAINAB ADEROUNMU, FNP-C; SAMUEL SMITH, MD; ANGELA OFOEGBU, DNP; and DOES 1 – 100, Inclusive.

Defendants.

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CASE NO.: 25VECV03723

ORDER GRANTING PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, FORM INTERROGATORIES, REQUESTS FOR PRODUCTION, AND MOTION TO DEEM RFAS ADMITTED FROM DEFENDANT SUNSHINE RESIDENTIAL HOME

I. BACKGROUND

Plaintiff Zachary Vann (Plaintiff), through his conservator, filed this action for elder abuse and negligence against Defendants Sunshine Residential Home, LLC ("Sunshine"), Oyewolfe Joseph Jose ("Joseph Jose"), Toluwalope Jose ("Jose"), Zainab Aderounmu, FNP-C ("Aderounmu"), Samuel Smith, MD ("Smith") (collectively, "Defendants"), and Angela Ofoegbu, DNP ("Ofoegbu") on July 3, 2025.

The clerk entered the defaults of Sunshine, Joseph Jose, and Aderounmu on November 3, 2025. The clerk entered the default of Jose on November 4, 2025. The clerk entered the default of Smith on December 1, 2025.

Plaintiff dismissed his claims against Ofoegbu on January 23, 2026. On March 9, 2026, the Court granted Defendants' motions to set aside default.

Plaintiff now moves to compel Sunshine's responses to his Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One). Plaintiff moves to deem his Requests for Admission admitted as to Sunshine.

II. PROCEDURAL HISTORY

On July 3, 2025, Plaintiff filed a Complaint alleging (1) Elder Abuse and Neglect and (2) Negligence.

On January 23, 2026, Plaintiff dismissed Ofoegbu.

On March 9, 2026, the Court granted Defendants' motions to set aside default and Defendants filed their Answers.

On July 30, 2026, Plaintiff filed the instant discovery motions.

As of September 22, 2026, no opposition had been filed.

III. LEGAL STANDARD

A. Requests for Production

A party upon whom a demand for the production of documents has been made has 30 days after service of the demand to respond. (See Code Civ. Proc. § 2031.260(a).)[1] The propounding and responding parties may agree to extend the time for response. (See Code Civ. Proc. § 2031.270(a).) When a party fails to serve a timely response, the propounding party's remedy is to seek a motion to compel response. (See Code Civ. Proc. § 2031.300(b).) A responding party that does not provide responses waives the right to object to the demand, including objections based on privilege or work product. (See Code Civ. Proc. § 2031.300(a).)¿

B. Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (See Code Civ. Proc. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

C. Requests for Admission

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

IV. ANALYSIS

Plaintiff moves to compel Sunshine's responses to his Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One). Plaintiff also moves to deem admitted as to Sunshine his Requests for Admission (Set One). Because the Motions rely on substantially similar facts, the Court will address them together.

On May 12, 2026, Plaintiff served discovery on Sunshine including his SROGs, FROGs, RFPs, and RFAs. (See e.g. FROGs Declaration of Anthony W. Willoughby II filed July 30, 2026 ("FROGs Willoughby Decl.", ¶ 2, Ex. A.) Sunshine has not provided any discovery responses to date. (See id., ¶ 5.)

The Court finds Plaintiff is entitled to an order compelling Sunshine's responses to Plaintiff's RFPs, FROGs, and SROGs. The Court finds Plaintiff is entitled to an order deeming the truth of matters admitted in his RFAs. Thus, the Court GRANTS Plaintiff's Motions to Compel SROGs, FROGs, and RFPs. The Court also GRANTS Plaintiff's Motion to Deem RFAs Admitted.

Sunshine is ordered to provide code compliant responses without objection to Plaintiff's RFPs, FROGs, and SROGs on or before October 16, 2026.

V. DISCOVERY SANCTIONS

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel . . . responses to interrogatories or production demands, absent substantial justification or other circumstances that make imposing the sanctions unjust. (Code Civ. Proc. § 2030.290(c), § 2031.300(c).) The court shall also impose a "monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Id., § 2033.280(c).)

Plaintiff requests discovery sanctions in the amount of \$960.00 in connection with his Motion FROGs, SROGs, and RFPs. This total comprises 1 hour to prepare each Motion and 1 hour to prepare a Reply and attend the hearing at counsel's hourly rate of \$450.00. (See FROGs Willoughby Decl., ¶¶ 7-10.) Plaintiff's counsel also incurred three \$60.00 filing fees. (See id.)

The Court awards Plaintiff's counsel \$1,080.00. The Court finds 1.5 hours to prepare the substantially similar, routine discovery motions and 0.5 hours to remotely attend the hearing at counsel's requested rate is reasonable. The court awards the total filing fee amount.

Sunshine's counsel is ordered to pay Plaintiff's counsel discovery sanctions in the amount of \$1,080.00 on or before October 29, 2026.

VI. CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motions to Compel SROGs, FROGs, and RFPs. The Court GRANTS Plaintiff's Motion to Deem RFAs Admitted.

Sunshine is ordered to provide code compliant responses without objection to Plaintiff's RFPs, FROGs, and SROGs without objection on or before October 16, 2026.

Sunshine's counsel is ordered to pay Plaintiff's counsel discovery sanctions in the amount of \$1,080.00 on or before October 29, 2026

IT IS SO ORDERED.

DATED: September 28, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.